

SECOND SCHEDULE.

Section 70.

ACTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 49.	The Purchase of Land (Ireland) Amendment Act, 1888.	Section two, save as regards advances in pursuance of purchase agreements entered into before the passing of this Act.
54 & 55 Vict. c. 48.	The Purchase of Land (Ireland) Act, 1891.	Section thirty-four, from "consisting" to the end of the section, as from the appointed day.
56 & 57 Vict. c. 35.	The Congested Districts Board (Ireland) Act, 1893.	Subsections (2) and (3) of section two.
3 Edw. 7. c. 37.	The Irish Land Act, 1903.	In section one, subsection (4), save as regards advances in pursuance of purchase agreements entered into before the passing of this Act. Section two, save as regards sales of parcels of land in respect of which purchase agreements have been entered into before the passing of this Act. In subsection (4) of section six, the words "with the consent of the owner." Subsection (3) of section forty-three. Section forty-four. In subsection (1) of section forty-seven, from "provided" to end of subsection. Subsection (3) of section forty-eight. Subsections (1), (2), and (3) of section fifty-one. Section seventy-five, save as regards sales of parcels of land purchased by the Congested Districts Board before the passing of this Act.

CHAPTER 43.

An Act to amend the Law relating to Customs and Inland Revenue, and for other purposes connected with Finance.
[3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

CUSTOMS AND EXCISE.

1.—(1) Where an entry or specification of goods or a shipping bill for goods has been delivered for the purposes of the Acts relating to the Customs, the proper officer of Customs and Excise may, at any time within twelve months after the delivery, require from the importer of the goods or his agent, or the exporter of the goods or his agent, as the case may be, the production of any invoices, bills of lading, or other documents, relating to the goods.

Power to require production of invoices, &c.

(2) If the importer or his agent, or the exporter or his agent, fails to comply with any such requirement, he shall for every such offence forfeit the sum of twenty pounds.

(3) The powers given by this section shall be in addition to, and not in derogation of, any power under the Acts relating to the Customs to require the production of invoices, bills of lading, and other documents upon the entry of goods or the delivery of the specification of goods.

2. If at any time any deficiency beyond that which can be accounted for by natural waste or other legitimate cause is found in any package of imported goods warehoused, the occupier of the warehouse shall, on the written demand of an officer of Customs and Excise, be liable immediately to pay the duty on the quantity of goods originally warehoused, and, if he fails to pay the duty, shall forfeit double the amount of the duty.

Power to require payment of duty on deficiency in warehoused goods.

3. Section one hundred and five of the Spirits Act, 1880, which relates to the removal of spirits accompanied by a permit or certificate, shall be read as if the words in subsection (3) “(the same not being under bond on removal from one such warehouse to another such warehouse)” were omitted therefrom.

Permit required for removal of spirits from one Customs warehouse to another.
43 & 44 Vict.
c. 24.

4.—(1) Section forty-one of the Customs Consolidation Act, 1876 (which makes provision with respect to the place from which goods are to be deemed to be imported) shall cease to have effect.

Information as to places from which goods are imported or to which goods are exported.
39 & 40 Vict.
c. 36

(2) The information to be furnished under the Customs Consolidation Act, 1876, in respect of goods imported or exported shall include such information in regard to the goods as the Commissioners of Customs and Excise may require to be given, and particularly, in the case of imported goods, the name of the place from which the goods were first consigned to the United Kingdom, and, in the case of exported goods, the name of the place of final destination of the goods, and the forms in Schedule B. to that Act may be altered by the Commissioners in such manner as they think expedient for giving effect to this section, and the Commissioners may, if they consider it

necessary, require evidence to be produced to their satisfaction in support of any information so furnished.

Provision as to drawback on tobacco.

5. Drawback shall not be paid, except with the consent of the Commissioners of Customs and Excise, upon any tobacco stalks or shorts or other refuse of tobacco (including offal snuff) which is not the produce of the ordinary manufacturing operations of the licensed tobacco manufacturer exporting or depositing the stalks, shorts, or refuse.

Addition of finings, &c. to beer deposited in a warehouse for exportation.

6. Subject to such regulations and security as the Commissioners of Customs and Excise may prescribe, a dealer in beer may deposit in a warehouse approved by the Commissioners beer brewed in the United Kingdom upon which duty has been paid, and may in the warehouse add to the beer finings for clarification or any other matter sanctioned by the Commissioners for the purpose of preparing the beer for exportation or use as ship's stores.

PART II.

STAMPS.

Amendment as to certain contracts chargeable for the purposes of stamp duty as conveyances on sale. 54 & 55 Vict. c. 39.

7. The limitation of section fifty-nine of the Stamp Act, 1891 (which makes certain contracts chargeable for the purposes of stamp duty as conveyances on sale) to contracts and agreements made in England, Ireland, or Scotland, shall cease to have effect.

Amendment of section 77 of the Stamp Act, 1891.

8. The provisions of subsection (2) of section seventy-seven of the Stamp Act, 1891 (which exempt a lease from stamp duty in respect of certain further considerations) shall not apply as respects any further consideration in the lease consisting of a covenant which if it were contained in a separate deed would be chargeable with ad valorem stamp duty, and accordingly the lease shall in any such case be charged with duty in respect of any such further consideration under section four of the said Act.

Stamp duty on allotment letters of fractional parts of shares.

9. It is hereby declared that the term "share" under the heading "LETTER of ALLOTMENT and LETTER of RENUNCIATION, or any other document having the effect of a letter of allotment" in the First Schedule to the Stamp Act, 1891, and under the heading "SCRIP CERTIFICATE, SCRIP, or other document" in that schedule, includes a fractional part of a share.

Provision as to stamping certain bills of exchange. 54 & 55 Vict. c. 39.

10. The provisions in sections thirty-four and thirty-eight of the Stamp Act, 1891, which relate to bills of exchange payable on demand, or at sight, or on presentation, shall apply also to bills of exchange expressed to be payable at a period not exceeding three days after date or sight which are chargeable with the duty of one penny under subsection (2) of section ten of the Finance Act, 1899.

62 & 63 Vict. c. 9.

PART III.

MISCELLANEOUS.

11.—(1) His Majesty may by Order in Council fix the fees payable in respect of licences for the importation of explosives granted by the Secretary of State under or in pursuance of the Explosives Act, 1875, and the fees so fixed shall be payable in respect of any licence so granted.

Fees on licences for importation of explosives.
38 & 39 Vict.
c. 17.

(2) Section twenty-six of the Explosives Act, 1875, so far as it gives power to the Secretary of State to fix the fees in respect of licences for the importation of explosives, or affects the amount of those fees, shall cease to have effect.

(3) His Majesty may by Order in Council revoke, alter, or add to any Order made under this section.

12.—(1) Part I. of this Act shall be construed together with the Customs Consolidation Act, 1876, and the Acts amending that Act, and Part II. of this Act shall be construed together with the Stamp Act, 1891, and the Acts amending that Act.

Construction, repeal, and short title.
39 & 40 Vict.
c. 36.
54 & 55 Vict.
c. 39.

(2) The enactments mentioned in the schedule to this Act shall be repealed to the extent specified in the third column of that schedule.

(3) This Act may be cited as the Revenue Act, 1909.

SCHEDULE.

Section 12.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
38 & 39 Vict. c. 17.	The Explosives Act, 1875.	The first paragraph of section twenty-six, so far as it relates to fees payable in respect of licences for the importation of explosives. In the Third Schedule, the words from "importation" to "ten shillings."
39 & 40 Vict. c. 36.	The Customs Consolidation Act, 1876.	Section forty-one.
43 & 44 Vict. c. 24.	The Spirits Act, 1880.	In subsection (3) of section one hundred and five, the words "(the same not being under bond on removal from one such warehouse to another such warehouse)."

Session and Chapter.	Short Title.	Extent of Repeal.
54 & 55 Vict. c. 39.	The Stamp Act, 1891.	In subsection (1) of section fifty-nine, the words "made in England or Ireland under seal, or under hand only, or made in Scotland, with or without any clause of registration."

CHAPTER 44.

An Act to amend the Law relating to the Housing of the Working Classes, to provide for the making of Town Planning schemes, and to make further provision with respect to the appointment and duties of County Medical Officers of Health, and to provide for the establishment of Public Health and Housing Committees of County Councils. [3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

HOUSING OF THE WORKING CLASSES.

Facilities for Acquisition of Lands and other Purposes of the Housing Acts.

Part III. of the principal Act to take effect without adoption.
53 & 54 Vict.
c. 70.

1. Part III. of the Housing of the Working Classes Act, 1890 (in this Part of this Act referred to as the principal Act), shall, after the commencement of this Act, extend to and take effect in every urban or rural district, or other place for which it has not been adopted, as if it had been so adopted.

Provisions as to acquisition of land under Part III. of the principal Act.

2.—(1) A local authority may be authorised to purchase land compulsorily for the purposes of Part III. of the principal Act, by means of an order submitted to the Local Government Board and confirmed by the Board in accordance with the First Schedule to this Act.

(2) The procedure under this section for the compulsory purchase of land shall be substituted for the procedure for the same purpose under section one hundred and seventy-six of the Public Health Act, 1875, as applied by subsection (1) of section fifty-seven of the principal Act.

(3) A local authority may, with the consent of and subject to any conditions imposed by the Local Government Board,

38 & 39 Vict.
c. 55.